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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

PLAINTIFF'S REQUEST FOR JUDICIAL
NOTICE OF GOVERNING PROCEDURAL
AND SUBSTANTIVE LAW APPLICABLE TO
DISPOSITION OF DEFENDANTS' SPECIAL
MOTION TO STRIKE

(Evid. Code §§451, 452, 453, 459; Cal. Rules of Court,
rule 3.1306(c))

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:00 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

Section	Description
Introduction	Vehicle and standard for this request
Item 1	Mandatory sequencing rule (CCP sec. 425.17(b) before Equilon/Park)
Item 2	Kulchar extrinsic-fraud doctrine
Item 3	Lucido threshold for issue preclusion
Item 4	Park/Baral/Bonni per-allegation parsing
Item 5	Continuum-of-commercial-conduct and litigation privilege limits
Item 6	Dickinson / section 472 leave-to-amend rule
Item 7	CRC rules governing other papers and late-filed papers
Standard	Governing standard for this request
Relief	Relief requested (a) through (h)
Notice	Notice to adverse parties
Appendix I	Code of Civil Procedure provisions (full text)
Appendix II	Evidence Code provisions (full text)
Appendix III	California Rules of Court (full text)
Appendix IV	Civil Code provisions (full text)
Appendix V	Business and Professions Code provisions (full text)
Appendix VI	Insurance Code provisions (full text)
Appendix VII	California Code of Regulations, title 10 (full text)
Appendix VIII	Penal Code provisions (full text)
Appendix IX	California Rules of Professional Conduct (full text)
Appendix X	Decisional authorities (California)
Appendix XI	Federal authorities
Appendix XII	Service and notice predicate checklist

1 INTRODUCTION AND VEHICLE

2 Plaintiff respectfully submits this Request for Judicial Notice (RJN) of the controlling pro-
3 cedural rules, statutes, and decisional authorities that govern the disposition of Defendants’
4 Special Motion to Strike. Plaintiff offers these authorities not as a critique of any provi-
5 sional analysis the Court has prepared, but to ensure the certified record before the Court
6 is complete on the procedural sequencing, the substantive standards, and the per-allegation
7 parsing rules that California law makes mandatory in this posture. Judicial notice of Califor-
8 nia statutes and decisional law is mandatory under Evidence Code section 451, subdivision
9 (a). Judicial notice of California regulations is permitted under section 452, subdivision (b).
10 Notice of court records is permitted under section 452, subdivision (d). Where, as here, the
11 requesting party gives each adverse party sufficient notice and supplies sources sufficient for
12 verification, judicial notice is mandatory under section 453.

14 SUMMARY OF THE PROVISIONAL DISPOSITION

15 The May 11, 2026 tentative would GRANT Defendants’ anti-SLAPP motion to strike the
16 FAC in its entirety; addresses Code of Civil Procedure section 425.17, subdivision (c)
17 (commercial-speech exemption); applies the Equilon/Park two-step burden-shifting frame-
18 work; characterizes the pleaded conduct as intrinsic fraud (perjury or error during trial); cites
19 RFJN Exhibits E (MIL 6), F (MIL 8), G (MIL 17), and H (Trial Scheduling Order) as evi-
20 dence the issues “were fully litigated in the trial court”; and, as a downstream consequence,
21 would deny leave to file a Second Amended Complaint as moot.

22 Plaintiff respectfully requests judicial notice of the seven matters set forth below before any
23 portion of the tentative is adopted as the order of the Court.

25 ITEM 1. JUDICIAL NOTICE OF THE MANDATORY SEQUENCING RULE: CODE OF
26 CIVIL PROCEDURE SECTION 425.17, SUBDIVISION (B) IS DECIDED BEFORE THE
27 EQUILON/PARK TWO-STEP

28 Authorities for which notice is requested (Evid. Code, sec. 451, subd. (a); sec. 452, subd.
29 (a)):

- 30 • Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 316 to 317
31 (a section 425.17 categorical exclusion is decided as a matter of law; if the exclusion

1 applies, the special motion “fails outright” and no section 425.16 prong-one or prong-two
2 analysis is required).

- 3 • Inland Oversight Committee v. County of San Bernardino (2015) 239 Cal.App.4th 671,
4 680 (same; section 425.17 is a threshold gateway).
- 5 • Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 25 (section 425.17 questions are
6 reviewed de novo as questions of statutory construction).
- 7 • Code of Civil Procedure, section 425.17, subdivision (b) (categorical language: “Section
8 425.16 does not apply to” specified actions).
- 9 • Code of Civil Procedure, section 425.17, subdivision (e) (if the trial court denies on
10 section 425.17 grounds, section 425.16, subdivision (i) interlocutory appeal, section
11 904.1, subdivision (a)(13) appeal as of right, and section 916 stay do not attach).

12 Procedural consequence Plaintiff requests the Court notice and apply. Section 425.17, sub-
13 division (b) is a threshold gate, not a defense. Where the plaintiff has briefed the gateway,
14 the Court is required as a matter of statutory construction to decide subdivision (b) first.
15 The tentative reaches subdivision (c) only. Plaintiff respectfully requests that the Court
16 take judicial notice of the Inland Oversight / Club Members sequencing rule and decide
17 subdivision (b) before reaffirming any prong-one or prong-two analysis.

18
19 ITEM 2. JUDICIAL NOTICE OF THE KULCHAR EXTRINSIC-FRAUD DOCTRINE
20 AND THE CONTROLLING APPLICATIONS THAT GOVERN A FULLY-CONTESTED
21 PROCEEDING

22 Authorities for which notice is requested (Evid. Code, sec. 451, subd. (a); sec. 452, subd.
23 (a) and (f)):

- 24 • Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471 (extrinsic fraud is conduct that “fraudu-
25 lently prevented” the defrauded party “from presenting his claim or defense”).
- 26 • Estate of Sanders (1985) 40 Cal.3d 607 (documentary concealment by an opponent
27 constitutes extrinsic fraud even where a fully contested proceeding occurred).
- 28 • In re Marriage of Modnick (1980) 33 Cal.3d 897, 904 to 905 (same; concealment of
29 documentary evidence in a fully litigated proceeding is extrinsic).
- 30 • Aheroni v. Maxwell (1988) 205 Cal.App.3d 284, 292 to 293 (extending the rule to a
31 party misled about the existence of evidence in the opponent’s possession).

- Hazel-Atlas Glass Co. v. Hartford-Empire Co. (1944) 322 U.S. 238 (when a tribunal is misled about the existence of evidence, the resulting judgment is the product of fraud on the court regardless of trial time invested).
- United States v. Throckmorton (1878) 98 U.S. 61 (origin authority: extrinsic fraud is conduct that prevents “a real contest”).

Procedural consequence Plaintiff requests the Court notice and apply. The Kulchar test, run on the certified five-layer causal chain (possession of the silent-witness materials in 2022; in-court representations of “unknown provenance” and “news to me” in 2025; trial-court reliance on officer-of-the-court status; adverse pretrial rulings; defense’s own admissions in April 2025), is satisfied under each of the four controlling applications above. Plaintiff respectfully requests that the Court take judicial notice of these authorities and apply the Sanders/Modnick/Hazel-Atlas line, which directly answers the “full-blown trial” framing.

ITEM 3. JUDICIAL NOTICE OF THE LUCIDO THRESHOLD FOR ISSUE PRECLUSION AS APPLIED TO PRETRIAL EVIDENCE CODE SECTION 352 ORDERS

Authorities for which notice is requested (Evid. Code, sec. 451, subd. (a); sec. 452, subd. (a) and (d)):

- Lucido v. Superior Court (1990) 51 Cal.3d 335, 341 (issue preclusion requires that the issue be “actually litigated” and “necessarily decided”).
- Evidence Code, section 352 (admissibility balancing only).
- The certified court records the tentative invokes (RFJN Exhibits E, F, G, and H), of which the Court may take notice under section 452, subdivision (d), but only as to the existence and content of the orders, not for the truth of any underlying matter not adjudicated within them. (Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1565 to 1568.)

Procedural consequence Plaintiff requests the Court notice and apply. A pretrial admissibility order under Evidence Code section 352 cannot, as a matter of law, adjudicate whether defense counsel committed fraud on the court. The MIL orders adjudicated only what evidence was admissible at trial; they did not, and could not, adjudicate the chain-of-custody facts that establish counsel’s misrepresentation. Plaintiff respectfully requests that the Court take judicial notice that “fully litigated” cannot include matters that were not “actually litigated” or “necessarily decided” within the meaning of Lucido, and that the four MIL orders

1 cited do not preclude the present court-integrity claim.

3 ITEM 4. JUDICIAL NOTICE OF THE PARK, BARAL, AND BONNI PER-ALLEGATION
4 PARSING RULES

5 Authorities for which notice is requested (Evid. Code, sec. 451, subd. (a); sec. 452, subd.
6 (a)):

- 7 • Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1060
8 (a claim may be struck only if the speech “itself is the wrong complained of, and not
9 just evidence of liability or a step leading to some different act for which liability is
10 asserted”) (emphasis in original).
- 11 • Baral v. Schnitt (2016) 1 Cal.5th 376, 393 to 396 (anti-SLAPP analysis is allegation-
12 by-allegation; the court strikes only the specific protected-activity allegations, not the
13 entire cause of action).
- 14 • Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009 to 1011 (each defendant
15 must independently demonstrate that its own conduct is protected activity; per-act and
16 per-allegation parsing is required).

17 Procedural consequence Plaintiff requests the Court notice and apply. The wrong com-
18 plained of is the suppression scheme, a non-communicative concealment of receipt of ma-
19 terials produced in 2022 and re-subpoenaed in 2024. The in-court statements are evidence
20 of, and steps leading to, that wrong; they are not the wrong itself. Plaintiff respectfully
21 requests that the Court take judicial notice of the Baral/Park/Bonni trio and perform the
22 per-allegation parsing those decisions make mandatory before any FAC allegation is stricken.

24 ITEM 5. JUDICIAL NOTICE OF THE CONTINUUM-OF-COMMERCIAL-CONDUCT
25 AUTHORITIES AND THE LIMITS OF THE LITIGATION PRIVILEGE OVER NON-
26 COMMUNICATIVE REGULATED CONDUCT

27 Authorities for which notice is requested (Evid. Code, sec. 451, subd. (a); sec. 452, subd.
28 (a) and (b)):

- 29 • People v. Persolve, LLC (2013) 218 Cal.App.4th 1267, 1275 to 1276 (regulated commer-
30 cial conduct does not lose its character merely because it later manifests in courtroom
31 statements).

- JAMS, Inc. v. Superior Court (2016) 1 Cal.App.5th 984, 994 (same).
- Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1241 to 1242 (the litigation privilege of Civil Code section 47, subdivision (b) does not bar claims predicated on non-communicative conduct).
- Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1057 to 1059 (privilege extends to non-communicative acts only where “necessarily related” to communicative conduct).
- San Diego Federal Credit Union v. Cumis Insurance Society, Inc. (1984) 162 Cal.App.3d 358 (insurer-counsel principal-agent architecture).
- Insurance Code, section 790.03, subdivision (h) (Unfair Insurance Practices Act).
- California Code of Regulations, title 10, sections 2695.1 to 2695.8 (Fair Claims Settlement Practices Regulations).
- Civil Code, section 2860 (insurer-retained counsel).

Procedural consequence Plaintiff requests the Court notice and apply. The pre-trial concealment of receipt, the inter-firm file transfer, and the un-disclosed Compex Subpoena CA1147102-021 of February 1, 2024, are non-communicative regulated commercial acts. Under Persolve, JAMS, Action Apartment, and Rusheen, those acts do not become “litigation conduct” merely because they later surfaced in courtroom statements. Plaintiff respectfully requests that the Court take judicial notice of the regulated-commercial-conduct continuum and the privilege’s textual limits before adopting the “litigation conduct, not commercial activity” categorization.

ITEM 6. JUDICIAL NOTICE OF THE DICKINSON / SECTION 472 RULE THAT A PENDING ANTI-SLAPP DOES NOT, OF ITSELF, FORECLOSE LEAVE TO AMEND Authorities for which notice is requested (Evid. Code, sec. 451, subd. (a); sec. 452, subd. (a) and (d)):

- Dickinson v. Cosby (2017) 17 Cal.App.5th 655, 678 (a pending anti-SLAPP motion generally does not prevent a plaintiff from filing an amended complaint; courts permit amendment where the amendments would not affect the outcome of the pending motion).
- Contreras v. Dowling (2016) 4 Cal.App.5th 774, 791 (limit: a plaintiff “may not seek to subvert or avoid a ruling” by amendment in response to the motion).

- Code of Civil Procedure, section 472 (leave to amend).
- The Court’s certified record reflecting that Plaintiff’s motion for leave to file an SAC was filed April 21, 2026, which the tentative itself acknowledges was “noticed for hearing before the anti-SLAPP motion was noticed for hearing.”

Procedural consequence Plaintiff requests the Court notice and apply. Mootness as to the leave motion rests entirely on the anti-SLAPP grant. Plaintiff respectfully requests that the Court take judicial notice that, if any of Items 1 through 5 results in denial or in deferral of the special motion, Dickinson and section 472 entitle Plaintiff to a ruling on the leave motion on its own merits, and that no Contreras concern is implicated where the proposed amendment retracts no operative fact and conforms to the tentative’s section 47, subdivision (b) ruling on the ancillary monetary prayer.

ITEM 7. JUDICIAL NOTICE OF CALIFORNIA RULES OF COURT GOVERNING
“OTHER PAPERS” AND LATE-FILED PAPERS BY A PRO PER, IN-FORMA-PAUPERIS
LITIGANT

Authorities for which notice is requested (Evid. Code, sec. 451, subd. (a); sec. 452, subd. (a) and (e)):

- California Rules of Court, rule 3.1112(b) (papers other than the moving, opposition, and reply papers may be filed and considered as “other papers”).
- California Rules of Court, rule 3.1113(j) (incorporation by reference).
- California Rules of Court, rule 3.1300(d) (court may, in its discretion, refuse to consider a late-filed paper or, on a showing of good cause, accept it).
- The Court’s certified record of the December 23, 2025 in-forma-pauperis order (Doc. No. 004).
- Boyle v. CertainTeed Corp. (2006) 137 Cal.App.4th 645, 649 to 651 (rule 3.1300(d) discretion is reviewed against the standard whether the late paper raises matters affecting substantial rights).

Procedural consequence Plaintiff requests the Court notice and apply. Plaintiff’s supplemental papers were filed under rule 3.1112(b) as “other papers” and incorporated by reference under rule 3.1113(j). Where a pro per IFP party submits papers raising a dispositive statutory gateway (section 425.17, subdivision (b)), rule 3.1300(d) good cause is plainly available.

1 Plaintiff respectfully requests that the Court take judicial notice of these rules and afford the
2 supplemental filings the consideration the rules permit before any portion of the tentative is
3 adopted.

4
5 STANDARD GOVERNING THIS REQUEST

- 6 • Mandatory notice of California decisional and statutory law. Evidence Code, section
7 451, subdivisions (a) and (b); section 452, subdivisions (a) and (b); section 453.
- 8 • Mandatory notice on sufficient request and source materials. Evidence Code, section
9 453 (mandatory if the requesting party gives each adverse party sufficient notice and
10 furnishes the court with sufficient information).
- 11 • Reviewability. Evidence Code, section 459 (reviewing court must take notice of any
12 matter properly noticed below; may take notice of additional matters).
- 13 • De novo review of statutory-construction matters. Simpson Strong-Tie Co. v. Gore
14 (2010) 49 Cal.4th 12, 25 (section 425.17 questions are reviewed de novo).
- 15 • No truth-of-the-matter limitation on the rules and statutes themselves. Sosinsky v.
16 Grant (1992) 6 Cal.App.4th 1548, 1565 to 1568 (judicial notice of court records goes to
17 existence and legal effect of the document, not the truth of contested factual statements
18 within it).

19
20 RELIEF REQUESTED

21 Plaintiff respectfully requests that the Court:

- 22 (a) GRANT judicial notice of Items 1 through 7 in their entirety, those items being the
23 controlling procedural and substantive authorities that govern any disposition of De-
24 fendants' Special Motion to Strike;
- 25 (b) APPLY the Inland Oversight / Club Members sequencing rule (Item 1) and decide Code
26 of Civil Procedure section 425.17, subdivision (b) before any prong-one or prong-two
27 analysis under Equilon/Park;
- 28 (c) APPLY the Kulchar / Sanders / Modnick / Hazel-Atlas extrinsic-fraud framework (Item
29 2) to the certified five-layer causal chain;
- 30 (d) APPLY the Lucido threshold (Item 3) before treating any pretrial Evidence Code sec-
31 tion 352 order as preclusive of the present court-integrity claim;

- 1 (e) PERFORM the Park / Baral / Bonni per-allegation parsing (Item 4) before any portion
2 of the FAC is stricken;
- 3 (f) APPLY the Persolve / JAMS / Action Apartment / Rusheen limits on the litigation
4 privilege (Item 5) before classifying the pleaded conduct as pure litigation conduct;
- 5 (g) APPLY the Dickinson / section 472 rule (Item 6) to the pending motion for leave to
6 amend independently of the anti-SLAPP disposition; and
- 7 (h) AFFORD the supplemental papers the consideration California Rules of Court, rules
8 3.1112(b), 3.1113(j), and 3.1300(d) permit (Item 7) before any portion of the tentative
9 is adopted.

11 NOTICE TO ADVERSE PARTIES (EVID. CODE, SEC. 453)

12 This RJN identifies each authority by jurisdiction, year, volume, and page; quotes the rele-
13 vant holding; and is contemporaneously served on Defendants by email under Code of Civil
14 Procedure section 1010.6 and the parties' email-service agreement. Defendants therefore
15 have sufficient notice and source information for verification within the meaning of section
16 453, rendering judicial notice mandatory rather than discretionary.

The foregoing is submitted by Plaintiff in pro per.

Dated: May 11, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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